IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.78485 of 2026

CNR No. BRHC011120942026

Arising Out of PS. Case No.-48 Year-2026 Thana- SONBERSA COURT District- Saharsa

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Saurabh Kumar @ Shaurabh Kumar @ Sajan Kumar @ Sajan Yadav S/O Mahendra Yadav Resident of Village - Sahuriya, P.S. - Sourbazar, District-Saharsa

... ... Petitioner/s

Versus

The State of Bihar

... ... Opposite Party/s

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Appearance :
For the Petitioner/s : Sri Nawal Kishore Agrawal, Sr. Advocate
Sri Pawan Kumar, Advocate
For the Opposite Party/s : Sri Chandra Bhushan Prasad, A.P.P.

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CORAM: HONOURABLE MR. JUSTICE SATYAVRAT VERMA

ORAL ORDER

2 30-10-2026 1. Heard Sri Nawal Kishore Agrawal, learned Senior Counsel for the petitioner and Sri Chandra Bhushan Prasad, learned A.P.P. for the State.

2. The petitioner seeks bail in a case registered for the offences punishable under Sections 115(2), 132, 281, 109(1), 324(4) and 3(5) of the BNS, 2023 as well as Sections 30(a) and 41(1) of the Bihar Prohibition and Excise (Amendment) Act, 2022.

3. Learned Senior Counsel for the petitioner submits that inadvertently, at para 3, it is pleaded that petitioner has antecedent of four cases, when he has antecedent of eight cases out of which six cases are under the Excise Act and is in custody since 26.09.2026 and allegation is of recovery of 234 litres of

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Codeine Cough Syrup from a Maruti Suzuki Swift Car.

4. Learned Senior Counsel appearing on behalf of the petitioner, after some arguments realizing his difficulty, seeks permission to withdraw the regular bail application with liberty to the petitioner to renew his prayer for bail after framing of charge.

5. Permission is accorded.

6. Accordingly, the regular bail application is dismissed as withdrawn.

(Satyavrat Verma, J)

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